



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 35TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD VIA VIRTUAL REMOTE SESSION (ONLINE PLATFORM) IN DAET, CAMARINES NORTE ON THE 20TH DAY OF SEPTEMBER, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA
HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA-LNB
HON. JUDY ROSE T. GALLARDO-SKMF

ABSENT:

COUN. APOLONIO B. PANONG

- On Official Leave of Absence (FL)

Resolution No. 300-2021

RESOLUTION ADOPTING AN ORDINANCE GRANTING MORATORIUM ON THE ACTUAL RATE OF TERMINAL FEE AND CHARGES AT THE DAET INTEGRATED TERMINAL AND CENTRAL TERMINAL COMPLEX OF DAET, CAMARINES NORTE AND PROVIDING TEMPORARY RATE THEREOF UNTIL FULL PASSENGER CAPACITY TO PUBLIC UTILITY VEHICLES IS ALLOWED BY THE AUTHORITIES

WHEREAS, Article E of the Municipal Revenue Code of Daet provides for imposition of fee and charges for using the bays, stalls, spaces and vacant lots of Daet Integrated Terminal and Central Terminal Complex in the Municipality of Daet, Camarines Norte;

WHEREAS, on March 17, 2020 Community Quarantine due to COVID-19 was implemented in the entire Luzon and suspended the operation of public transport facilities, which was gradually allowed in areas where pandemic restrictions are downgraded to a General Community Quarantine (GCQ);

WHEREAS, despite the downgrade of the province of Camarines Norte into General Community Quarantine (GCQ), only few public transportation modes were granted special permit to operate by the Department of Transportation (DOTr) with restriction on fifty percent (50%) passenger capacity;

WHEREAS, the LGU Daet received the appeal from transport sector occupying the public terminals owned by the municipal government requesting to reduce the fees and charges being imposed because of negative economic effect of pandemic in their operation;

WHEREAS, it is justifiable to partially grant their request in order to provide economic relief to the sector;

NOW THEREFORE, after due deliberation, on motion of Councilor Rossano C. Valencia, with Councilors Apolonio B. Panong and Felix C. Abaño as co-movants, seconded by Councilors Nestor F. Dalida and Ma. Eliza H. Llovit;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 427-2021

AN ORDINANCE GRANTING MORATORIUM ON THE ACTUAL RATE OF TERMINAL FEE AND CHARGES AT THE DAET INTEGRATED TERMINAL AND CENTRAL TERMINAL COMPLEX OF DAET, CAMARINES NORTE AND PROVIDING TEMPORARY RATE THEREOF UNTIL FULL PASSENGER CAPACITY TO PUBLIC UTILITY VEHICLES IS ALLOWED BY THE AUTHORITIES

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "2021 Moratorium in the Actual Fees and Charges being imposed at the Municipal Public Terminals in Daet, Camarines Norte".

SECTION 2. OBJECTIVE. This Ordinance aims to provide the transport sector occupying the municipal terminal economic relief due to COVID-19 pandemic.

SECTION 3. MORATORIUM. All public transport vehicles utilizing the facilities of Daet Integrated Terminal and Central Terminal Complex are hereby granted moratorium from paying the actual fees and charges being imposed under Article 5E.01 of the Revenue Code of 2014 until the full passenger capacity to public utility vehicle was allowed by the authorities.

In replacement thereof, the hereunder temporary terminal fees and charges shall be imposed:

A. Terminal/ Parking Fee	Current Rate	Temporary fees/charges	% of discount
a) Public Utility buses	P 200.00/day	P 100.00/day	50%
b) Public Utility Van and Jeepneys	100.00/day	50.00/day	50%
c) Other Public Utility Vehicle	75.00/day	45.00/day	60%
B. Bay Rental Fee	3,500.00 per month/ per bay	3,000.00 per month/ per bay	14%



C. Departure Fee			
a) Public Utility buses	50.00/departure	25.00/departure	50%
b) Public Utility Van and Jeepneys	30.00/departure	15.00/departure	50%
c) Other Public Utility Vehicle	20.00/departure	10.00/departure	50%

SECTION 4. REPEALING CLAUSE. All ordinances, orders, rules and regulations or parts thereof contrary to or inconsistent with any of the provisions of this Ordinance are hereby amended or repealed.

SECTION 5. SEPARABILITY CLAUSE. If any provisions of this Ordinance are held invalid, the other provisions not so declared shall not be affected and will continue to be effective.

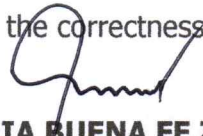
SECTION 6. EFFECTIVITY. – This ordinance shall take effect upon its approval.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof, all others concerned for their information and appropriate action;

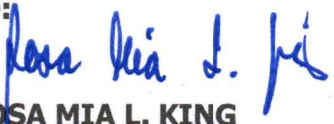
CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing.


MARIA BUENA FE Z. LUARES
Secretary to the Sangguniang Bayan


COUN. ROSSANO C. VALENCIA
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: SEP 29 2021